PURCHASE ORDER No.	PO DATE	Amendment No.	Amendment Date
BU-C&E/E-Loco Green Field Factory/26559	15-MAY-17	0	
Name of the Supplier/Vendor:			

NIHVA TECHNOLOGIES PRIVATE LIMITED 187, G-Block, Thermax Chowk,Above Renault Showroom, MIDC Chinchwad,PUNE, MAHARASHTRA-411019 India		**MSMED Regn. No.**	
		TIN No.	27545250455V
		Requirement of Sales Tax Forms	
Contact Person	MR.Mallikarjun Patil 8551096333	**E1 Form**	
Email	arjun.patil@nihva.com	**C Form**	
Phone	(020)66304033	**Details of Annexures attached to this PO**	
Fax		1. Annexure-1, Schedule of items,Quantity and Price. 2. Annexure-2, RTGS Payment format. 3. Annexure-3, GPC No.-TPL/SCM/GPC/C2-HV 4.Anenxure-4-CPBG & ABG Format	
Name of TPL's Contact Person :	Mr. H.Rangaswamy Manager-Projects	**Telephone No.**: 40-6623 8526 /9848532903 **Email id:** rangaswamy@tataprojects.com	

Dear Sirs,

Sub: Design, engineering, manufacturing, inspection, packing & forwarding, supply, transportation, delivery at site of Automatic Motorized and Manual Gates for E-Loco Factory at Madhepura, Bihar, India.

Ref: 1.Your initial offer Mail Dt: 10.05.17
2.Your Final offer Mail Dt: 11.05.17
3.Filled Commercial Terms Letter Dt: 08.04.17 and Subsequent Correspondence

With reference to the above, we are pleased to issue this Purchase Order for Design, engineering, manufacturing, assembly, shop testing, inspection, packing & forwarding, supply, transportation, delivery at site of Automatic Motorized and Manual Gates items for E-Loco Factory at Madhepura, Bihar, India as per the documents enclosed herewith as Annexures and the Terms & Conditions as detailed below. The technical specification and clarifications/confirmations including price (except otherwise specifically agreed to in writing) as specified hereunder shall be read along with attached annexures and reference documents which shall form an integral part of this Purchase Order.

Sl. No.	Item No.	Item Description	Quantity	Unit of Measure	Unit Rate INR	Total Amount INR
		Details As Per Annexure1				
				Total		**23,42,402**

Total in Words Rupees Twenty Three Lakh Forty Two Thousand Four Hundred Two only

1.0 Price Basis: The Material shall be supplied on FOR-Project basis, inclusive of packing, forwarding & transportation . Prices shall remain firm and fixed till completion of supply of material at site. Escalation in prices shall neither be admissible nor payable for any reasons whatsoever.
GST will be applicable from the date of notification. On introduction of GST, subvendor/subcontractor derives any benefit (either directly or indirectly) the vendor/subcontractor should pass on the same to the main contractor (TPL) proactively.

2.0 Delivery Schedule: Motorized and Manual Gates shall be delivered within 5 weeks from the date of drawing approval

3.0 Packing and Forwarding/ Any other Charges: All packing & forwarding charges are inculded in the contract Price.

4.0 Excise Duty: Not applicable

5.0 Sales Tax / VAT:CST shall be payable extra at actuals against submission of documentary evidence.Statutory variation in the CST during original delivery period shall be TPL's account.

6.0 Service Tax: Not applicable

7.0 Transit Insurance: Shall be in M/s NIHVA Scope Up to Project Site Store.

8.0 Transportation: Vendor's Scope

9.0 Inspection: Material shall be inspected by TPL / MELPL/Client / third party at manufacturing unit as per approved QAP &

TATA PROJECTS LIMITED
Registered Office : "Mithona Towers-1" 1-7-80 to 87 Prenderghast Road Secunderabad - 500 003 Telangana India
Phone +91-40-6623 8801 Fax 6617 2535
CIN : U45203TG1979PLC057431 e-mail tpl@tataprojects.com www.tataprojects.com

drawings /documents. Material dispatch clearance certificate (MDCC) is to be obtained from TPL before dispatch of material. In case of any rejection / failure / non acceptance of material during inspection or after receipt of material at site, vendor shall arrange to rectify / replace the same without any extra cost to TPL including to & fro transportation.

10.0 Warranty/ Defect Liability Period: The Supplier shall be responsible for the rectification of defective materials/defective in the works for a period Twenty-Four (24) months from the date of taking over (After completion of PG Test and FAC) of the works by the MELPL/ Client. Any defects discovered and brought to the notice of the contractor forthwith shall be attended to and rectified by him at his own cost and expense. In case the M/s Agnice fails to carry out these rectifications, the same may without prejudice to any other right or remedy available, be got rectified by TPL/ MELPL at the cost and expense of the M/s Agnice .

11.0 Liquidated Damages / Price Reduction: In case the Package have not been executed within the agreed delivery schedule for reasons attributable to M/sNIHVA, liquidated damages shall be applicable at the rate of 1% of the Contract Price per week of delay or part thereof subject to a maximum of 10% of Contract Price.

12.0 Submission of CPBG (Contract Performance Bank Guarantee):M/s NIHVA shall furnish Contract Performance Bank Guarantee for 10% of the contract price in TPL's format within fifteen (15) days of receipt of this PO and same shall be valid till the end of Warrantee Period. The Bank Guarantee shall be from any Nationalized Bank or Bank acceptable to TPL.

13.0 Payment terms

1	10% Advance-10% advance payment against submission of ABG for the equivalent amount
2	80% Progress-80% payment against receipt of the material at site within 30 days
3	5% Progress-5% after installation & Commissioning within 30 days
4	5% Progress-5% against PBG and validity of BG till defect liability period

14.0 Special Instructions for submission of Invoices and Bank Guarantee(s) and GST compliance for Payment: 14.1 We have a system of making payments to our vendors through RTGS (Real Time Gross Settlement). You shall submit bank details countersigned by your banker in the format enclosed as Annexure-3 for release of payment through RTGS.
14.2 You shall submit the following documents along with your invoices for payments (Original + 4 copies):-

a)Tax Invoice showing goods description, quantity, unit price and total amount
b) Buyer's copy of Excise Gate Pass/Invoice
c) Despatch Clearance Certificate
d) Inspection and Test Reports
e) Transporter's copy Excise Gate Pass/Invoice
f) Delivery Challan
g) Packing List
h) Lorry Receipt
i) Erection, Operation & Maintenance Manuals

GST Compliance:

(a) Mobilisation advance (if any) for supply of goods or services will be subject to GST.
(b) If there is a loss of credit or additional liability and/or interest etc., arising due to non-compliance by the supplier of goods/services, the same shall be paid by the supplier to the main contractor (TPL).
(c) If there is any delay in remittance of GST liability to statutory authorities by the supplier of goods/services, the same shall be withheld from the payment of RA bill, and the payment shall be released only after submission of documentary proof pertaining to such remittance.
(d) If the bill is not technically & commercially correct, payment will be withheld with respect to any liability to TPL.

15.0 Quantity Variation: TPL reserves the right to increase or decrease the quantities without any change in Unit Price and other terms and conditions during execution of the Purchase Order upto plus or minus Twenty five percent (+ 25%) of Contract Price. The quantities of individual items may however vary upto any extent.

16.0 Risk Purchase: During execution of this order, if any delay is observed due to reasons attributable to you other than Force Majeure conditions which may cause delay in completion of the delivery, TPL shall be at liberty to cancel the contract, totally or partially, at any point of time without assigning any reasons, thereof, and take alternative measures at your risk and cost.

17.0 Dispatch Instructions: Detailed despatch instructions along with delivery details shall be furnished separately. Please contact Mr. H.Rangaswamy @ 9848532903/ Mr.Veera Reddy Mandadi @ 040 6623 8714.

18.0 Insurance: The goods supplied under the Purchase Order shall be fully insured by you against loss or damage incidental during transportation and delivery after they are despatched from your works. In case any item is lost or damaged during transit , you shall supply the same without extra cost to TPL.

19.0 Vendor's Help desk: Vendors shall forward their feedback in the "Vendor Feedback Form" attached as Annexure-4 to this order to the "Vendors HelpDesk" in TATA Projects Limited to the group e-mail ID: vendorshelpdesk@tataprojects.com for appropriate response from the group, on any critical issues related to execution of this order for which response is unduly delayed

by the concerned contact persons from the projects, Finance & SCM as indicated in this order.

20.0 Other Terms and Conditions: 1.0 The scope of work includes but not limited to the BOQ.Completeness of the supply in its entirety shall be the responsibility of M/s. NIHVA. Any equipment, accessories which may not be specifically mentioned in the technical specification & drawing but of Good Engineering practice / necessary for the satisfactory completion of the project shall be part of your scope only.
2.0. Way bill to be issued by TPL.
3.0 Labour cess shall be payable extra by TPL.
4.0 Freight Charges Rs.80,000/- shall be paid extra.
5.0 All other terms and condition not specifically mentioned in the purchase order shall be covered as per General purchase condition for Supply (reference No.TPL/SCM/GPC/C2-HV).

20.1 Please refer to the Vendor Performance Review format attached herein. Your performance against this Purchase Order shall be evaluated, as per various attributes mentioned in the Vendor Performance Review format, on completion of all supplies (or any other time during the tenure of the contract, as deemed appropriate by TPL).

21.0 Business Ethics: Tata Projects Ltd. is committed to operating its business conforming to the highest moral and Ethical standards. This commitment underpins everything that we do In connection with this Purchase Order/ Works order. Tata Projects Ltd., shall work with suppliers and service providers who share similar value and demonstrate the same values. We expect our suppliers & service providers to conform to the Anti Fraud Policy, Whistle Blower Policy and Tata Code of Conduct (TCoC) in interactions with, and on behalf of us, including respecting the confidentiality of information shared with them. Tata Projects Ltd represents and covenants that it has not made, offered, Paid, Promised or authorized, and will not make, offer, pay, promise or authorize, the payment or gift of money or anything of value directly or indirectly to any party, in exchange for a business advantage, including a commitment to expedite or perform a routine action. You are requested to visit our Website www.tataprojects.com for viewing the full text of Anti Fraud Policy, Whistle Blower Policy and TATA Code of Conduct. Any concerns in violation of ethical business practices may be reported to tpl-whistleblower@tataprojects.com.

22.0 Order Acceptance

The subject Order is issued in duplicate. Please return the Order acknowledgement copy within 7 days of date of issue of this Order duly signed and stamped on each page, as token of your acceptance of the subject order along with all Terms & Conditions without any unconditional statements. In the event the Order acceptance is not received within the above specified time, the subject Order shall be deemed to be accepted by the Supplier. Please return one acceptance copy of this Order to Mr.Srinivas Jadala, Sr.Manager-SCM and second acceptance copy to Mr. P Ranga Swamy, Manager-C&E, duly signed on each page with your Company's Seal.

23.0 Post Order Correspondence after Returning Order Acceptance Copies

Please quote our Purchase Order No. BU-C&E/E-Loco Green Field Factory/26559 dated 15/05/2017 in all your future correspondence which shall be addressed to Mr.Ramesh P, GM-Projects. Copies of correspondence involving commercial matters shall be marked to Mr.K Sunder Rao, Asst. Vice President - SCM.
All your invoices for Payment shall be forwarded in Original PLUS 1 extra copy to Central Bill Desk at Corporate Office, TATA PROJECTS LIMITED, 1-7-80 to 87, Prenderghast Road, Secunderabad -500003.
Please note that the above requirement will ensure seamless processing of your invoices While forwarding the invoices, please also ensure that all supporting documents required for processing of invoices are enclosed. For this purpose, we recommend that a check list be submitted together with your invoices.

Yours truly
for TATA PROJECTS LIMITED

K Sunder Rao 15/05/17
Asst. Vice President - SCM

Ramesh P
GM-Projects

TPL Internal Ref:

Annexure1 to PO No- BU-C&E/E-Loco Green Field Factory/26559 Dt:15-MAY-17

Sl. No.	Item Number	Item Description	Quantity	Unit of Measure	Unit Rate INR	Total Amount INR
1	6201030040	GATE,AUTOMATIC MOTORIZED SLIDING,MILD STEEL,WD 8 X HT 1.8 M,AT MAIN ENTRANCE TO LPC	1	Numbers	419965.00	419965
2	6201030038	GATE,WICKET,WD 1.5 X HT 1.8 M	5	Numbers	27020.00	135100
3	6201030039	GATE,AUTOMATIC MOTORIZED SLIDING,MILD STEEL,WD 18 X HT 1.8 M,AT MAIN ENTRANCE TO THE SITE	1	Numbers	749892.00	749892
4	6201030044	GATE,OPENABLE SINGLE/DOUBLE LEAF,MILD STEEL,WD 7.2 X HT 1.8 M,AT MAIN ENTRANCE TO COMMERCIAL AND BUSINESS CENTRE	1	Numbers	127751.00	127751
5	6201030041	GATE,AUTOMATIC MOTORIZED SLIDING,MILD STEEL,WD 8 X HT 1.8 M,AT MAIN ENTRANCE TO FACTORY	1	Numbers	419965.00	419965
6	6201030043	GATE,OPENABLE SINGLE/DOUBLE LEAF,MILD STEEL,WD 6 X HT 1.8 M,AT MAIN ENTRANCE TO ADMIN BUILDING	1	Numbers	106329.00	106329
7	6201030042	GATE,AUTOMATIC MOTORIZED SLIDING,MILD STEEL,WD 7.2 X HT 1.8 M,AT MAIN ENTRANCE TO RESIDENTIAL TOWNSHIP	1	Numbers	383400.00	383400
				Total Order Value (Rounded to nearest INR)		**23,42,402**
Total Order Value (Rounded off) in Words Rupees Twenty Three Lakh Forty Two Thousand Four Hundred Two only						

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K Sunder Rao
Asst. Vice President - SCM

15/05/17

Ramesh P
GM-Projects